

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
AND A COMMISSION ON PROFESSIONAL COMPETENCE FOR
THE HUNTINGTON BEACH UNION HIGH SCHOOL DISTRICT
STATE OF CALIFORNIA**

In the Matter of the Dismissal of:

FABIAN LUNA,

A Permanent Certificated Employee,

Respondent.

OAH No. 2024100508

DECISION

This matter was heard by a Commission on Professional Competence on August 25 through 29, 2025, in Huntington Beach, California. The Commission members were Michael Anderson, Gregg Primeaux, and Erlinda Shrenger, Administrative Law Judge (ALJ), Office of Administrative Hearings (OAH), State of California, who presided.

Lauren Ruvalcaba and Anthony P. De Marco, of the law firm Atkinson, Andelson, Loya, Ruud & Romo, represented the Huntington Beach Union High School District (District).

Arthur Four, of the law firm Reich, Adell & Cvitan, represented Fabian Luna (respondent), who was present throughout the hearing.

Oral and documentary evidence was received. At the conclusion of the hearing, the record was held open for the parties to upload exhibits to Case Center by September 2, 2025, as follows: Respondent to upload Exhibit VV and the District to upload Exhibits 28, 29, and 30. Hard copies of the exhibits were provided to the Commission members at the hearing. The parties timely uploaded their respective exhibits to Case Center.

Additionally, on August 29, 2025, the District provided the ALJ and respondent's counsel with a brief regarding admissibility of hearsay and photographic evidence, which is marked for identification as Exhibit 31. The record was held open for respondent's counsel to file and serve a response to the District's briefing by September 8, 2025. Respondent's counsel timely filed and served an opposition brief, which is marked for identification as Exhibit WW.

The record closed and the matter was submitted for decision on September 8, 2025.

FACTUAL FINDINGS

Jurisdictional Matters

1. Respondent is a permanent certificated employee of the District.
2. The District immediately suspended respondent without pay effective August 14, 2024. (Exh. 3.)
3. On August 22, 2024, the District served respondent with a Notice of Intention to Dismiss, notifying him of the District's intent to dismiss him within 30 days unless he made a written request for a hearing. (Exh. 3.) The Notice of Intention to

Dismiss included a Statement of Charges, a Request for Hearing form, and copies of relevant Education Code sections.

4. On September 19, 2024, respondent served the District with a Request for Hearing and Notice of Defense, which contained his request for a hearing to determine whether cause exists to terminate his employment. (Exh. 4.)

5. All jurisdictional matters have been met.

Respondent's Background

6. Respondent is 54 years old. He has been employed by the District since 2006. Respondent holds a single-subject credential in social studies. He received his credential in 1995 or 1996. He holds a bachelor's degree in political science with a minor in economics, and a master's degree in education.

7. Respondent was hired by the Paramount Unified School District in the 1997-1998 school year. He taught at Paramount High School starting in 1999. He taught history for 10th and 11th graders, and Government and Economics for 12th graders. He also coached boys basketball at Paramount High School. Respondent taught at Paramount High School for a total of eight years.

8. Respondent was hired by Huntington Beach High School (HBHS) in 2006. According to respondent, he was hired as a social studies teacher who would also coach varsity basketball.

Huntington Beach High School

9. HBHS operates on a semester schedule. Economics and Government were one-semester courses taken by students in their senior year. Seniors would take

one of the courses in the fall semester, and then take the other course in the spring semester. Respondent taught the Economics and Government courses at HBHS.

10. At all relevant times, respondent's classroom was located in the "B" Building on the HBHS campus. A diagram (not to scale) of respondent's classroom, showing the location of respondent's desk and students' desks, was presented. (Exh. HH.)

District Policies

11. District policies are reviewed annually during professional development days. District Board Policy 1130 provides in part: "All employees are expected to use kindness, tact and tolerance in their relationships with students, parents and the general citizenry.....The staff shall exhibit high personal and professional standards of conduct at all times." (Exh. 2, p. A48.)

12. District Board Policy 4119.2/4219.2/4319.2 provides in part: "The relationship between the school employee and the student should be one of professional cooperation and respect. All employees, whether certificated or classified, have a responsibility to conduct themselves in a manner that will maintain an atmosphere that is conducive to learning." (Exh. 2, p. A50.)

13. The certificated job description maintained by the District for the position of "Teacher" provides, in pertinent part: "The teacher is directly responsible to the school principal, or designate,The teacher has the responsibility, as part of a high school teaching assignment, to guide and facilitate the learning experience of students in accordance with established educational goals of the district. In addition, the teacher shares with other staff responsibility for the safety and welfare of students and staff members." (Exh. 2, pp. A51-A52.)

14. The job duties of the position of “Teacher” for the District include, but are not limited to, the following: “Establishes and maintains standards necessary to preserve a suitable learning environment.” (Exh. 2, p. A52.)

Former HBHS Student Witnesses

15. At hearing, the District presented testimony from the following former HBHS students (identified by initials to protect their privacy): B.S., G.C., E.H., A.J., K.A., C.C., and L.B. All of these former students graduated from HBHS in 2023, except for A.J., who graduated in 2022.

16. At hearing, respondent presented testimony from the following former HBHS students (identified by initials to protect their privacy): K.B., C.K., V.S., B.R., and R.A. All of these former students graduated from HBHS in 2023, except for R.A., who graduated in 2022.

17. The Commission determined that the former HBHS students who testified appeared to have used their best efforts to provide truthful and complete answers to the questions posed to them. The Commission determined the former students’ testimonies were credible.

Student Complaints and District’s Investigation

2021-2022 SCHOOL YEAR

18. Michelle Pendergast has been the Student Support School Psychologist at HBHS for 21 years. As School Psychologist, her duties include, but are not limited to, providing crisis counseling and walk-in counseling for students.

19. In March 2022, Ms. Pendergast received a written statement from A.J. regarding inappropriate conduct by respondent. (Exh. 3, p. A104.) As discussed more fully in Factual Findings 37 through 39, below, A.J. was a student in respondent's Government class and reported that respondent stared at her chest area as she attempted to discuss her grade with him. On March 18, 2022, Ms. Pendergast assisted with A.J.'s mid-semester transfer out of respondent's Government class. (Exh. 14.) No further action was taken in the 2021-2022 school year regarding A.J.'s allegation of inappropriate conduct by respondent. A.J. graduated from HBHS at the end of the spring 2022 semester.

2022-2023 SCHOOL YEAR

20. Safe-to-Speak is a platform for students to report to the HBHS administration any concerns or inappropriate conduct relating to other students or staff. Students may remain anonymous when making a Safe-to-Speak report. Email notifications are sent to administrators and the School Psychologist Ms. Pendergast when a Safe-to-Speak report is filed.

21. On December 22, 2022, B.S, who was a 12th grade student, submitted a report to the Safe-to-Speak platform regarding inappropriate behavior by respondent. (Exh. 3, p. A111.) The report states, in pertinent part:

[Respondent] has consistently has [*sic*] harassed and has been saying that if we want a better grade in his class we have to spend "one on one time with him", and has also said to me and my friends that he has "special liking for us", and has made inappropriate comments on our appearances and what we are wearing. It is getting to a point where I am

uncomfortable to even come to this class. I am really glad that I only have to be in this class for a semester I would appreciate it if there would actually be some action taken towards this situation because I am worried for how far he will take it and if he will take action to his comments. I am worried for the safety [sic] of not only me but the many other students he have [sic] to go through the same experiences. I would appreciate if he will not [know] that this safe to speak has come from me.

(Exh. 3, p. A111.)

22. At hearing, B.S. explained she filled out and submitted the Safe-to-Speak report form on her laptop computer during respondent's class on December 22, 2022. B.S. testified that on December 22, 2022, during class, respondent had repeatedly said to her "You're crazy." When B.S. responded "no," respondent continued saying she was crazy. Respondent's comments made B.S. feel uncomfortable. B.S. felt respondent's comments came off as "very sexual," like he was asking if she was crazy in a sexual way.

23. On February 14, 2023, Ms. Pendergast sent an email to Assistant Principal Dave Yonts, asking if he had contacted respondent regarding B.S.'s Safe-to-Speak report. (Exh. 27.) Mr. Yonts' reply email states: "I have gone up there a few times and he hasn't been in his room or had students in the room. I'll talk to him soon." On February 15, 2023, Ms. Pendergast sent an email to Mr. Yonts, stating in part: "OK thanks, I only ask because a staff member spoke to me who was concerned about the same things from [respondent]." (*Ibid.*)

24. On March 15, 2023, Ms. Pendergast forwarded B.S.'s Safe-to-Speak report to HBHS Principal Danny Morris. (Exh. 3, p. A106.)

25. In March 2023, Ms. Pendergast met with B.S. regarding her Safe-to-Speak report about respondent's inappropriate conduct. During that meeting, B.S. mentioned J.S., another female student in the class. Subsequently, Ms. Pendergast spoke with J.S. about her concerns of inappropriate conduct by respondent.

26. Additionally, in March 2023, Ms. Pendergast spoke with another student, K.A., about inappropriate conduct by respondent that occurred in the previous 2021-2022 school year. As discussed more fully below, respondent was the proctor for the California Science Test (CAST) given to 11th grade students. K.A. took the CAST in respondent's classroom in the 2021-2022 school year. K.A. reported that when she asked respondent for another laptop charger during the CAST, respondent stared at her chest almost the entire time.

27. Ms. Pendergast obtained written statements from B.S., J.S., and K.A., regarding respondent's inappropriate conduct. (Exh. 3, pp. A107-A108 (J.S.'s statement) and p. 103 (K.A.'s statement); and Exh. 12 (B.S.'s statement).) Ms. Pendergast reviewed each student's written statement to verify they were complete and consistent with their verbal statements to her.

28. After obtaining the written student statements, Ms. Pendergast called Child Protective Services, which then referred her to the Huntington Beach Police Department. The police came to Ms. Pendergast's office and separately interviewed B.S., J.S., and K.A. Ms. Pendergast was present during the police interviews.

29. On March 16, 2023, Ms. Pendergast sent an email to Principal Morris regarding J.S.'s interview with the police. The email noted J.S. was the third student

interviewed by the police and was in the same class as B.S. The email states in part: "During the interview[, J.S.] kept saying he was 'creepy' and the police asked her what that meant. She shared a few things, one of which was invasion of personal space. Then she said I have a picture I took. Both B.S. and J.S. said [respondent] would frequently come up behind their desks and lean over with his face right near their faces. This particular day J.S. was on her phone when [respondent] was close to her and so she snapped a pic. She said [respondent] said 'did you just take a picture' and she said 'yep.'" (Exh. 5.)

30. Daniel Bryan is the Assistant Superintendent of Human Resources for the District. On March 14, 2023, Mr. Bryan received information from Principal Morris that respondent engaged in inappropriate conduct with female students.

31. On March 15, 2023, Principal Morris sent an email to Mr. Bryan regarding B.S.'s Safe-to-Speak report. (Exh. 6.) Principal Morris had been informed about the Safe-to-Speak report by School Psychologist Michelle Pendergast. Respondent was placed on administrative leave on March 15, 2023, while the District investigated the allegations against him.

32. Mr. Bryan and an administrator from another high school in the District, Stacy Robison, began interviewing students around March 15, 2023. Ms. Robison has been employed by the District since 2016 and is currently the Principal at Valley Vista High School. Ms. Robison was also previously involved with the Academy for Performing Arts magnet program (APA program) on the HBHS campus. The APA program has about 700 students that come from different schools in the District. Ms. Robison recognized some of the female students interviewed as participants in the APA program. Ms. Robison never met respondent but may have seen him in meetings.

33. The District interviewed approximately 30 to 40 students and approximately 8 to 10 adults. The District started with interviewing students who wrote incident reports and statements. After those students, the next students interviewed were selected from the rosters of respondent's classes.

34. Ms. Robison's impression from interviewing the male students was that respondent generally paid more attention to female students than male students in his classes. Some male students indicated female students did not feel safe or comfortable in respondent's classroom. Ms. Robison's impression from interviewing the female students was that there was a "definite overall concern" they did not feel safe in respondent's classroom, respondent had a "creepy vibe," and female students were warned that once they were in respondent's class, they should be covered up and not wear provocative clothing.

35. The District's investigation was completed in summer 2023. Based on the investigation, the District concluded respondent engaged in conduct that created an unsafe atmosphere for students due to the sexual and harassing nature of his conduct, which rendered him unfit as a classroom teacher.

36. In July 2023, respondent was interviewed by the District's counsel. He denied engaging in the conduct alleged by the female students. In February 2024, respondent was offered a *Skelly* meeting but declined to participate. (Exh. 1, p. A1.)

2021-2022 School Year

TESTIMONY OF STUDENT A.J.

37. A.J. was a 12th grade student in respondent's Government class in the 2022 spring semester. On March 11, 2022, during a break in the school day, A.J. went

to respondent's classroom to speak with respondent because the grades for some of her assignments were entered incorrectly in the gradebook. A.J. spoke with respondent as he was seated at his desk in the classroom. As A.J. spoke, respondent stared at her body, particularly her chest area. A.J. felt respondent was not listening because he made no eye contact with her and asked her to repeat what she said two or three times. Respondent's staring at her body and chest area made A.J. feel uncomfortable.

38. As a result of the interaction with respondent, A.J. was in shock. She went to the library and told the library assistant, David, what had happened. David provided A.J. with a blank Student Statement form. A.J. completed and signed the Student Statement form on March 15, 2022. She described the incident with respondent, in part, as follows:

Throughout our discussion, which lasted approximately five minutes, [respondent] was staring at my body, particularly my chest area. I attempted to hold eye contact to little avail. He continuously asked me to repeat myself, not paying attention to my inquiries. In an attempt to escape the situation, I made several efforts to end the conversation after he fixed my grade on Canvas.....He continued the conversation, talking over me and still staring at my body, and made me feel utterly trapped and uncomfortable. I wrapped up the interaction with short, direct responses, wanting to exit his classroom as soon as possible. . . . [Respondent] made little to no eye contact with me and spent more time staring at my chest than he did my face. As

a student, I feel mortified and objectified by this behavior exhibited by my teacher.

(Exh. 3, pp. A104 and A112.)

39. A.J. transferred out of respondent's Government class approximately one week after the March 11, 2022 incident. On March 18, 2022, Ms. Pendergast sent an email to A.J.'s guidance counselor indicating Principal Morris had approved A.J.'s transfer from the class. The email explained that A.J. "filled out an incident report last week and has been missing her Gov[ernment] class with [respondent] ever since due to the fact that she doesn't feel comfortable. She asked if she can be in another teacher's class and I ran it by [Principal Morris] this morning and he said yes." (Exh. 14.)

TESTIMONY OF STUDENT K.A.

40. K.A. was an 11th grade student in the 2021-2022 school year. She graduated from HBHS at the end of the 2022-2023 school year.

41. K.A. did not have respondent as a teacher while a student at HBHS. However, she knows respondent because she took the CAST in respondent's classroom in March 2022, when she was a junior. Respondent was the proctor and, according to K.A., the only teacher present during the testing. There were 25 to 30 students, including K.A., who took the CAST in respondent's classroom.

42. While taking the CAST in March 2022, the battery for K.A.'s laptop computer began losing power. K.A. approached respondent and asked him for another laptop charger. K.A. testified respondent stared at her chest during this interaction, which lasted approximately five minutes. K.A. told another student about the incident at the time it happened. However, K.A. did not make a report or complaint to any

school administrator or staff at that time. K.A. testified she blocked the incident from her mind.

43. C.C. was the student K.A. told about the incident with respondent. C.C. was also a junior in the 2021-2022 school year. C.C. did not have respondent as a teacher until the following school year, when he was a senior. C.C. testified that, in March 2022, K.A. told him about respondent staring at her chest during the CAST and how it made her feel uncomfortable. C.C. testified he was not surprised to hear about K.A.'s incident with respondent, because there were lots of rumors about respondent at the time.

44. One year later, in March 2023, K.A. was contacted by Ms. Pendergast regarding the incident with respondent during the CAST. K.A. told Ms. Pendergast about the incident and agreed to make a written statement because other students were coming forward to report similar incidents involving respondent. At hearing, K.A. explained that knowing others faced similar situations as hers, she wanted to provide her information. Although she did not make a report to school officials in March 2022, K.A. felt her incident with respondent "was a big deal when it was happening."

45. On March 13, 2023, K.A. completed and signed a Student Statement form in which she described the incident with respondent as follows: "I went to ask for a charger because I was in his class for the CAST testing and he was looking at my chest almost the entire time." (Exh. 3, p. A103.)

46. After completing her written statement, K.A. was called to Ms. Pendergast's office a second time and was interviewed by police officers. K.A. told the police officers about her incident and reiterated the information in her written

statement. K.A. reported that respondent's conduct made her feel "very uncomfortable."

2022-2023 School Year

TESTIMONY OF STUDENT B.S.

47. B.S. was a 12th grade student in the 2022-2023 school year. She graduated from HBHS at the end of that school year. B.S. was a student in respondent's fifth period Economics class.

48. B.S. did not feel comfortable going to respondent's class because respondent had a "weird demeanor" towards female students and he seemed to target them. Respondent stared at female students' bodies. B.S. testified respondent stared at her body, specifically her chest. She described respondent's conduct as a "direct stare." B.S. felt uncomfortable when respondent stared at her chest. B.S. was aware her classmates J.S. and A.H. were made to feel uncomfortable by respondent's conduct. B.S. felt respondent favored female students over male students in class. Respondent was "very blunt and straight to the point" with male students, but "had many follow up questions" with female students.

49. B.S. testified that respondent commented on students' appearances and commented on how long her legs were. He told B.S., "Wow your legs are so long." (Exh. 12.) Respondent also made comments about the clothing worn by female students in the class. B.S. recalls respondent making a comment about a female student who wore her volleyball shorts to class. B.S. does not recall the exact comment but remembers it seemed inappropriate.

50. B.S. testified respondent would stand uncomfortably close to students. On one occasion, respondent was standing so close to her that she could feel his breath behind her ear. When respondent stood too close, B.S. felt scared and was in a fight-or-flight mindset. In her written statement, B.S. wrote: "[Respondent] would get uncomfortabl[y] close to mine and [another student's] desk, almost like he didn't know what personal space was." (Exh. 12.) B.S. testified that, on another occasion, J.S. took a "selfie" picture with her cell phone to show how close respondent was standing behind her as she sat at her desk. (Exh. 10.) B.S. was present when J.S. took the picture.

51. B.S. testified respondent made inappropriate comments to her and her classmates J.S. and A.H. Respondent's comments made B.S. feel uncomfortable. Specifically, respondent told B.S., J.S., and A.H., that he had a "special liking" for them. In her written statement, B.S. wrote: "During the first semester in [respondent's] class, I was consistently uncomfortable with the words that would come out of [respondent's] mouth. He would say things like 'I have a special liking for you.'" (Exh. 12.)

52. B.S. testified respondent told students that if they wanted a better grade, they must spend more time with him, which B.S. also noted in her Safe-to-Speak report. (Exh. 1, p. A29.) B.S. testified she overheard respondent tell J.S. that if she wanted a better grade, she must spend more one-on-one time with him. This testimony is supplemented by J.S.'s written statement that respondent "often threaten[ed] my grade and giving me zeros or bad grades if I didn't spend 'extra time with him outside of class.'" (Exh. 3, p. A107.)

53. B.S. testified respondent made J.S. sit on a stool next to his desk during class. Respondent told J.S. she had to sit on the stool if she wanted her assignments graded. When J.S. sat on the stool, respondent asked her questions about her personal life and if she had a boyfriend. B.S.'s testimony is supplemented by J.S.'s written

statement in which she wrote, in part: "Every week I had to sit there [i.e., on the stool] for up to a[n] hour sometimes while he talked about me joining the family, meeting his son, his own life problems, family issues, and other things in his personal life." (Exh. 3, pp. A107-A108.)

54. B.S. took a picture of J.S. sitting on the stool. (Exh. 11.) B.S. took the picture because she thought it was strange that respondent made J.S. sit on the stool when J.S. was visibly uncomfortable. J.S. told B.S. she felt uncomfortable when respondent made her sit on the stool. In her written statement, B.S. wrote: "[Respondent] would make [J.S.] sit at a stool behind his desk for no reason and talk to her about very random topic[s] and said 'I know you don't like me but I have a special liking for you.'" (Exh. 12.)

55. B.S. testified she was made to feel uncomfortable when respondent played the movie "Freakonomics" in class. A segment of the movie discussed how the first name given to a person at birth may impact the person's economic and social status when they become an adult. One of the names featured was B.S.'s first name, which the movie associated with a woman who was a stripper and in a lower economic status. One scene in the movie showed female strippers dancing on a stage wearing only bikini bottoms, with a graphic of their first name covering their breasts. One stripper's breasts were covered by a graphic of B.S.'s first name. B.S. felt the movie was directed towards her. B.S. was uncomfortable while the movie played in class because other students were staring at her and respondent was chuckling.

56. B.S. submitted the Safe-to-Speak report while in respondent's class on December 22, 2022, after respondent repeatedly told her, "You're crazy." Although B.S. replied, "No," respondent kept stating she was crazy. B.S. felt respondent's comment came off as "very sexual" and made B.S. feel uncomfortable. At hearing, B.S. explained

that she came forward with a Safe-to-Speak report because she had heard over the years that respondent was a creepy teacher, which she experienced herself and did not want other students to experience. B.S. felt strongly that respondent's staring at female students and making inappropriate comments needed to be reported.

TESTIMONY OF STUDENT G.C.

57. G.C. was a 12th grade student in the 2022-2023 school year and graduated from HBHS at the end of that school year. G.C. was a student in respondent's fifth period Economics class. B.S. and J.S. were also students in the class. In respondent's classroom, G.C.'s desk was in the front row and faced respondent's desk. As such, G.C. overheard respondent's conversations with students at his desk.

58. G.C. testified respondent singled out J.S. during class. Respondent made J.S. sit on the stool next to his desk on more than three occasions. G.C. overheard respondent's conversations with J.S. at his desk. Respondent told J.S. she was behind in class and needed to work on some things. G.C. heard respondent tell J.S. that if she wanted a good grade, she would need to spend more one-on-one time with him. Respondent told J.S. she needed "special attention" because of her grades. G.C. testified she did not see J.S. doing class work when respondent made her sit on the stool. Respondent would not allow J.S. to return to her desk when she asked to do so.

59. G.C. overheard respondent have personal conversations with J.S. unrelated to Economics. G.C. felt respondent, when speaking with J.S., sounded like he was speaking with a friend at a bar, and not like he was a teacher speaking with his student. G.C. testified respondent asked J.S. if she had a boyfriend, asked her about a school dance, and asked if anyone asked her to go to the dance with them. He also told J.S. she must have a lot of boys interested in her.

60. Both B.S. and G.C. testified that respondent's conversations with J.S. when she sat on the stool were about personal matters, such as respondent asking J.S. if she had a boyfriend or if she was going to a school dance. Their testimonies are supplemented by J.S.'s written statement in which she wrote, in part: "One time at his desk he asked me if I was going to the school dance and I said yes, he asked to see my dress and asked if I was going with a boy. I said no I was just going with my friends and he said 'Why you're a pretty girl'; 'I bet your [sic] popular'; 'very popular with the boys'; 'do you like boys'; 'I know a lot of boys must like you'; 'I know your [sic] popular with the boys so you must be popular around school'; 'the girls must hate you'; 'I wouldn't let you go alone.'" (Exh. 3, p. A108.)

61. G.C. testified she felt uncomfortable when respondent began calling J.S. up to his desk more frequently. G.C. felt "something was not right" and she had to listen to respondent's conversations with J.S. at his desk "to make sure nothing bad was happening." As a result, G.C. was unable to concentrate on her class work. G.C. was worried for J.S. because J.S. appeared uncomfortable and did not seem to want to talk to respondent at all, even about her grades. G.C. could tell J.S. was uncomfortable from her body language and the way she responded to respondent's conversation, if she responded at all.

62. Additionally, G.C. felt uncomfortable being in respondent's class because he would comment on her appearance, specifically her make-up and clothes. Respondent would lean into G.C.'s face to look at her make-up. This made G.C. feel uncomfortable and, as a result, she wore less make-up and wore a coat during class so respondent would not comment on her appearance. G.C. testified respondent would lean in "very close" to her face, which made her fearful.

63. G.C. did not like being in respondent's class. She felt "extreme dread" about her safety and J.S.'s safety. She worried about respondent standing physically too close to her. G.C. did not share her concerns about respondent with anyone on campus. She did not speak with J.S. about her concerns. G.C. was "very shy" and, although they were in the same class, she and J.S. were not friends and did not run in the same circle of friends. G.C. testified the only person she told about her concerns about respondent was her mother. G.C. told her mother respondent would lean in close to her face and comment on her make-up. G.C. also told her mother she did not want to go to respondent's class anymore.

64. G.C. did not file a complaint against respondent. G.C. explained she "wanted to believe maybe respondent was just being friendly" or she was making the situation seem like "a bigger problem than it was." G.C. was scared to come forward because it might affect her grades. She was a senior and just wanted to graduate. She thought of her experience in respondent's class as "one weird experience" that she could put behind her and forget about. At hearing, G.C. testified, "Now I wish I would have said something sooner. But I was scared."

65. G.C. testified respondent's conduct made her reluctant to participate in class. She felt nervous any time respondent stopped to speak with J.S., whose desk was near G.C.'s desk. G.C. did not want to ask respondent any questions during class because she was afraid of being treated like J.S.

TESTIMONY OF STUDENT E.H.

66. E.H. is a former student of HBHS. She was a senior in the 2022-2023 school year and graduated at the end of that school year. E.H. was in respondent's fifth period Economics class in the 2023 spring semester.

67. E.H. testified she heard rumors about respondent, but the rumors did not necessarily make her feel uncomfortable about respondent. However, there was one incident that raised a concern for E.H. One day in respondent's classroom, E.H. and another female student were having a conversation. When respondent said he and the female student lived in the same neighborhood, E.H. went back to her desk but she could still hear the conversation between the female student and respondent. The female student's house was brought up on Zillow. E.H. doesn't remember who pulled up the female student's house on Zillow.

68. The layout of the female student's house was shown on Zillow. Respondent asked where the female student's bedroom was located in the house in relation to her parents' bedroom, which made E.H. feel uncomfortable. E.H. thought it was weird for respondent to ask about the layout of the female student's house. Respondent pointed to a bedroom in the house and said he wanted to go in there. E.H. could not recall the exact words, but respondent wanted to see the inside of the female student's house and a specific bedroom. E.H. sat at her desk and thought how weird the conversation was.

TESTIMONY OF PRINCIPAL MORRIS

69. Principal Morris has been a principal in the District for 15 years. He has been the Principal at HBHS for nine years. Respondent has been a teacher at HBHS during that time.

70. Principal Morris testified, during his tenure as principal, people would inform him of things they were hearing about respondent, primarily his inappropriately looking at people, looking at women's chest areas, and being creepy. Principal Morris testified he did not necessarily have concerns about respondent's behavior, but the

comments made by others about respondent were “in the back of my mind to think about.” He did not fully address the comments with respondent other than to tell him to be careful.

71. Principal Morris noted that staff interactions with students are discussed as part of professional development. He testified that recommendations for staff interactions with students included keeping their classroom doors open and having someone else present in the room, such as another adult or other students. Principal Morris advises his staff to “stay safe and protect themselves.” With regard to teacher interactions with students, Principal Morris has advised respondent, “We are guilty until proven innocent.”

TESTIMONY OF MICHAEL FRITCHOFF

72. Michael Fritchhoff has been employed by the District as a teacher since 2007. He has taught at HBHS for 18 years and currently teaches World History and Social Psychology. Mr. Fritchhoff knows respondent, who was already employed by the District at the time Mr. Fritchhoff was hired.

73. Mr. Fritchhoff taught one of the Government classes for seniors in the 2022 spring semester. A.J. was a student who transferred from respondent’s Government class to his class in approximately March 2022. Mr. Fritchhoff was told by the librarian, David, of an incident where respondent stared at A.J.’s chest area. Mr. Fritchhoff believes A.J. transferred to his class because of that incident.

74. Mr. Fritchhoff testified about an incident in his classroom in the 2023 spring semester involving another student, J.S. Mr. Fritchhoff had a student-teacher working in his classroom. During a group activity, the student-teacher went from group to group. Mr. Fritchhoff saw J.S. flinch when the student-teacher got physically

close to her and heard J.S. say that she had PTSD from respondent. Mr. Fritchhoff testified J.S. flinched by rocking to the left and leaning away from the student-teacher.

Respondent's Testimony and Contentions

75. Respondent currently resides approximately one mile from the HBHS campus. His three children attended HBHS when they were younger. When respondent began teaching at HBHS, he was a teacher and a coach. His teaching goals were to help students grow academically, prepare for college, learn responsibility and life lessons, and build character. Respondent felt his students were receptive to him and enjoyed his classes. The vibe of the classroom indicated the students were excited to come to his class.

ALLEGATIONS REGARDING STUDENT A.J.

76. At hearing, respondent testified he did not remember much about student A.J., who was in his Government class in the 2022 spring semester. Respondent recalled she had attendance issues and was no longer in the class after the first six weeks of the semester.

77. At hearing, respondent denied that he stared at A.J.'s body and chest area as she alleged. Respondent claimed, "I didn't do that. I'm not that type of person." Respondent testified he does not remember any such interaction but believes A.J. may have "misinterpreted" his looking up from his desk, where he was seated and working when she approached him to talk about her grade. Respondent testified he does not believe he stares at students. Respondent testified if he knew he made a student feel uncomfortable, he would apologize to the student and tell them that was not his intention. Respondent claimed he did not know the reason A.J. transferred from his class at the time of the transfer. He claimed, "I was never told the reason."

ALLEGATIONS REGARDING STUDENT K.A.

78. At hearing, respondent denied having any conversation with K.A. during the CAST. Respondent explained teachers do not have laptop chargers available during the CAST, and students are told to prepare for the CAST by making sure their laptop computers are fully charged. Respondent denied he was the only teacher present during the CAST as K.A. claimed. Respondent testified there was a second teacher present, a math teacher whose name respondent could not recall; however, respondent presented no evidence to corroborate this testimony.

79. Respondent testified he has no idea why K.A. would feel he was staring at her chest. Respondent testified, if a concern was brought to his attention that he made a student feel uncomfortable, he would feel terrible and make sure the student understood it was not his intention to make them feel uncomfortable.

GUIDANCE FOR 2022-2023 SCHOOL YEAR

80. Respondent testified the 2022-2023 school year was the first school year after the COVID-19 pandemic that students were back at school on a full schedule. Respondent claimed "my normal approach" to teaching was what was being pushed by administrators. On staff development days, there was a push for "social emotional learning concepts." Teachers were encouraged to build connections with students, such as by standing at the classroom door and greeting students. Respondent claimed there was no specific guidance for interacting with female students or students of the opposite sex. The focus was on getting to know the students and making connections with them, which respondent claimed he was already doing as a coach.

ALLEGATIONS REGARDING STUDENT J.S.

81. Respondent testified he had a stool in his classroom next to his desk that he used to rest his knee on during lectures. He claimed students sometimes borrowed the stool for group work during class. Respondent denied making any student sit on the stool to get a result from him, such as grading an assignment. Respondent testified he has no idea why J.S. would allege he had a "special stool" for her. Respondent claimed the only time he remembers J.S. using the stool was when she informed him she would be on vacation for three weeks near the end of the fall semester. On rebuttal, the District presented evidence of J.S.'s attendance record to refute respondent's claim that J.S. was absent from school for three weeks. (Exh. 28.) The Commission finds that if the winter break period is counted, then J.S.'s attendance record arguably shows she was absent for three weeks from December 24, 2022, through January 13, 2023. Thus, respondent's claim of this one occasion J.S. used the stool is plausible.

82. Respondent testified he never noticed J.S. feeling uncomfortable around him or avoiding him. He is "perplexed" and "feels horrible" that J.S. claimed he stared at her and took a "special interest" in her. Respondent noted his classroom desk was nowhere close in proximity to J.S.'s desk in the classroom.

83. Respondent is aware of the "selfie" picture J.S. took of him standing behind her during class. (Exh. 10.) Respondent claimed students were working in small groups as he walked around the classroom. Respondent "assumes" one of the groups flagged him down, and J.S. took the picture as he walked over to the group. Respondent testified, "I did not know the picture was taken." Respondent claimed the first time he saw the picture was in July 2023, during his interview with the District. However, Ms. Pendergast, in her email to Principal Morris dated March 16, 2023, noted

J.S. indicated in her police interview that respondent knew she had taken a picture of him. (See Exh. 5.)

84. At hearing, respondent described J.S. as a teenager with a quirky personality who did things not within the norm. Respondent testified J.S. was “brand new” to HBHS and had transferred to HBHS for her senior year from Mater Dei High School. That testimony, however, was refuted by evidence of J.S.’s attendance record, indicating she attended HBHS for all four years of high school. (Exh. 28.)

85. B.S. and J.S. were friends and respondent had to remind them not to socialize during class. Respondent did not remember having any unusual interactions with B.S. and claimed he had only limited interactions with her.

86. During the first three days of the semester, while taking attendance, respondent commented to J.S. that she and his daughter had the same first name and spelled it the same way. Respondent claimed it was not uncommon for him to ask students about their names at the start of a semester. Respondent testified he did not notice J.S. respond to his comment, so he moved on to the next student.

DISCUSSIONS WITH STUDENTS UNRELATED TO CLASS SUBJECT

87. Respondent testified he discussed extra-curricular activities and events with his students occasionally, during the seven-minute passing period between classes. For example, he asked athletes about their last game. Respondent described these interactions with students as “normal interactions to build rapport.” Respondent testified he did not ask students who they were dating. However, if he was putting up a flyer on the Smart Board for a school event, such as a school dance, and he knew a student was going to the dance, he would ask the student about who they were going with and whether they were going with friends, just small talk. Respondent claimed, if

knew a student did not want the conversation, he would immediately halt it and apologize.

88. Respondent denied he discussed his family and personal life with his students. Respondent claimed the only time his family came up in class was during an activity where he paired off students to interview each other and then have the students tell the class about themselves. At the end of the activity, respondent told the class about his background, wife, and family.

89. At hearing, respondent testified about a conversation he had with a female student about how they both lived in the same neighborhood. (This was the conversation overheard by student E.H.) Respondent claimed the female student took out her laptop computer and pulled up her house on Google maps. Respondent told the student he recognized the area and then asked her which model or style of home she lived in. Respondent explained he asked that question because he was interested in architecture and thought he might want to remodel his home, and it would be interesting to see the layout of other homes in the area. Respondent asked the student about the different rooms in her house but he never went to the student's house. Respondent testified the female student never appeared to be uncomfortable during their conversation. Respondent claimed the first time he heard about the student feeling uncomfortable was during his interview with the District in July 2023.

COMMENTING ON FEMALE STUDENTS' BODIES AND APPEARANCES

90. Respondent testified he would never comment on the bodies of female students. He recounted one incident where he commented that a student had long legs. The student sat behind J.S. near the trash can by the classroom door. Respondent claimed when he went to dispose of trash, he propped open the classroom door, the

student behind J.S. stood up, respondent noticed she was very tall and asked her if she played sports, the class bell rang, and the students dispersed.

91. Respondent testified he would comment "very rarely" about students' clothing. Respondent recalled telling one student who had original Air Jordans that he was "cool looking." He testified he would also comment if a student wore a Raiders shirt.

92. Respondent testified about his interactions with student G.C., who was in his Economics class in the fall 2022 semester. Respondent claimed G.C. was moved to his class halfway through the semester because she was struggling in another class. Respondent thought he would be able to help her. Respondent testified G.C. sat in seat 13, in the front row facing respondent's desk, so her wheelchair could be placed next to her desk. (See Exh. HH.) Respondent sometimes had "small talk" with G.C. He never noticed G.C. appearing to be uncomfortable in his classroom.

93. Respondent testified G.C. was a "plain Jane" and dressed simply. Respondent recalled one occasion when he made a comment to G.C. that she had make-up on and looked nice. He testified G.C. typically did not wear make up. Respondent claimed if he had known his comment made G.C. feel uncomfortable, he would have apologized and let her know it was not his intention to make her feel uncomfortable. Respondent testified, "I have no problem admitting when I'm wrong."

FREAKONOMICS MOVIE

94. Respondent testified he showed one segment of the movie Freakonomics on the last day of class of the fall semester. He used the movie as a time-filler. The movie was just playing in the background while he was finalizing grades and students were using their phones or talking to each other. Respondent testified he gave a brief

introduction before playing the movie. Respondent testified he did not focus on the naming segment of the movie, which he notes is a PG-13 rated documentary.

95. Respondent testified he has no idea why B.S. would think the movie was directed at her. He claimed he was not aware of any concerns related to showing the Freakonomics movie in class until his interview with the District in July 2023.

RESPONDING TO DISTRICT'S ALLEGATIONS

96. Respondent claimed the first time he was questioned about the allegations made against him was during his July 2023 interview with the District. In testimony, he seemed to imply that the hearing was his first opportunity to explain himself. However, by his own admissions on cross examination, respondent had opportunities to explain himself but he chose not to do so. In addition to the July 2023 interview, the District had a meeting with respondent in September 2023 and scheduled a *Skelly* meeting in February 2024. Respondent chose not to participate or provide information at those meetings. Respondent's claim that he did not know how to participate in those meetings was not convincing, given that he was accompanied by his legal counsel to the July 2023 and September 2023 meetings, and was represented by legal counsel for the *Skelly* meeting.

97. Additionally, respondent was not forthcoming during the July 2023 meeting with the District. On rebuttal, Assistant Superintendent Bryan testified the July 2023 meeting lasted approximately two hours, during which the District's counsel asked respondent questions regarding the allegations made against him. Mr. Bryan was present at the meeting. He recalled that when respondent was asked about J.S., he initially claimed he had no recollection of her. The District's counsel asked questions that gave respondent context clues about J.S. Mr. Bryan testified respondent did not

remember J.S. until 45 minutes into the meeting, after being asked multiple questions about J.S. Mr. Bryan's impression is respondent remembered more specific details about J.S. in this hearing than he did at the July 2023 meeting. At this hearing, respondent claimed J.S.'s name did not initially spark his memory at the July 2023 meeting. This claim is not convincing, especially since J.S. and respondent's daughter share the same first name and spell it the same way.

98. Respondent contends the allegations made against him are not in line with his character and do not reflect who he is as a teacher, father, and devout Catholic. He testified he did not engage in the alleged conduct, he never had any ill intent towards anyone, and he was never given a chance to apologize. Respondent testified he is now much more aware and cautious when interacting with female students. He realizes his intentions can be misinterpreted. Respondent acknowledged, as a teacher, he is responsible for avoiding conversations with students that could make them feel uncomfortable. Respondent just wants his life to go back to normal. He wants to return to teaching students and coaching sports.

Respondent's Character Witnesses

STUDENTS K.B. AND B.R.

99. K.B. and B.R. were 12th grade students in the 2022-2023 school year and were in respondent's fifth period Economics class in the 2022 fall semester. B.S., G.C., and J.S. were also in this class. K.B. testified she enjoyed having respondent as a teacher and learned a lot in his class. Similarly, B.R. testified he enjoyed respondent's class and felt respondent was the most engaging teacher out of all his classes.

100. K.B. did not notice respondent favoring any students. She felt respondent treated all students with the same level of respect. She never felt uncomfortable

around respondent. K.B. only vaguely remembers B.S. being in the class. She did not personally know B.S. but recalled they attended the same middle school. K.B. did not know if B.S. had any concerns about respondent because she and B.S. never had any direct conversations.

101. K.B. did not know J.S. personally but knew her behavior in class. According to K.B., J.S. was constantly late to class, she was disrespectful to respondent and other students, and she was defensive when asked questions during class. K.B. also never saw J.S. sit on a stool during class. On cross-examination, K.B. explained that J.S. got defensive and had a disrespectful tone when respondent called on her during class. K.B. assumed J.S.'s defensiveness was because she did not know the answer. J.S. was the only student K.B. remembered being disrespectful. K.B. felt respondent "was just trying to be a good teacher" and made every effort to get J.S. to engage in the classwork. K.B. never heard respondent tell J.S. to see him after class to work with him one-on-one. K.B. did not remember watching the Freakonomics movie during respondent's class.

102. B.R. recalled that B.S. was in respondent's fifth period economics class but he barely knew her and spoke to her only a few times. B.R. did not notice B.S. appearing uncomfortable in respondent's class. B.R. heard that some students felt uncomfortable being in respondent's class, but he personally never saw it. B.R. heard "chatter" midway through the semester that respondent acted inappropriately. After hearing that, B.R. started to take notice of students appearing to be uncomfortable in respondent's class. However, B.R. "never actually saw behavior by respondent that seemed out of place."

103. B.R. did not feel respondent, as a teacher, was too engaged or crossed a line with students. He felt respondent was just being friendly with students to show

that he cared, which B.R. appreciated. B.R.'s experience with other teachers was that they did not care, while respondent "seemed like he cared about us." B.R. recalled J.S. was a student in the class and there was a rumor she was made to sit on a stool during class, but B.R. does not recall that happening. B.R. did not remember the Freakonomics movie being shown during class.

STUDENTS C.K., V.S., AND R.A.

104. C.K. and V.S. were 12th grade students in the 2022-2023 school year. They were in respondent's fourth period Economics class in the 2022 fall semester. They were not in the fifth period Economics class with B.S., G.C., and J.S. Thus, C.K. and V.S.'s respective testimonies are not probative on the issue of respondent's conduct involving B.S., G.C., or J.S. during the fifth period Economics class.

105. C.K. testified she enjoyed respondent's class and did not have any issues on how respondent treated her in class. Similarly, V.S. testified respondent's Economics class was one of her favorite classes and she did not see any concerning behavior during the class. Both C.K. and V.S. testified they never saw respondent engage in any inappropriate conduct toward any student during class or outside of class.

106. R.A. graduated from HBHS at the end of the 2021-2022 school year. She was in respondent's classes for Economics and Government during her senior year. R.A. testified respondent was one of her favorite teachers at HBHS because he cared about what he was teaching and about the well-being of his students. Since R.A. graduated at the end of the 2021-2022 school year, R.A.'s testimony has no probative value regarding the allegations involving B.S., G.C., or J.S. that occurred during the 2022-2023 school year.

ANDY VERDONE

107. Andy Verdone has worked for the District a total of 42 years, all at HBHS. Mr. Verdone is currently the head of the Physical Education (P.E.) Department, as well as a P.E. teacher and the head surfing coach. Mr. Verdone has been in the P.E. Department for the past eight years.

108. Prior to the P.E. Department, Mr. Verdone worked in the Special Education Department at HBHS. During that time, his classroom was next door to respondent's classroom in the "B" Building on campus. Mr. Verdone testified he and respondent co-taught subjects in the Special Education Department for at least 10 years. Mr. Verdone attended respondent's Economics and Government classes with his special education students who were seniors. Respondent did most of the teaching while Mr. Verdone assisted the special education students.

109. Mr. Verdone and his wife are good friends with respondent and his wife, and they socialize together. Mr. Verdone opined respondent is a person of "excellent character," an outstanding teacher who cares about his students, a good father to his children, and he attends church. Mr. Verdone has never had any concerns about respondent's behavior with female students and has never been made aware of any such concerns.

110. Mr. Verdone is aware that allegations have been made against respondent's character but is unaware of the basis of the allegations. Mr. Verdone is not surprised the allegations against respondent were made by female students because, in Mr. Verdone's view, girls sometimes "make stuff up" and they know the "power of accusation." Mr. Verdone claimed he has teacher friends who have been removed based on such accusations. Mr. Verdone was previously the faculty advisor

for the girls' dance team. He never allowed the girls to "make stuff up" about him, because he would take attendance and then leave for an hour to get coffee. Mr. Verdone made sure to remove himself from the room with the girls' dance team and their female instructor, who was not a District employee and not a certificated teacher.

111. Mr. Verdone acknowledged it is inappropriate for a teacher to stare at female students' bodies and teachers should not do it. But he commented that HBHS is like "fashion school" since the school eliminated the dress code, and students wear "the latest styles." Mr. Verdone also acknowledged it would be inappropriate for a teacher to comment on female students' bodies.

112. At hearing, Mr. Verdone was often combative with the District's counsel during questioning and responded in a hostile manner by making statements such as "I'm not on trial here!" Mr. Verdone also complained about having to attend the hearing after teaching his first day of new school year and, at times, did not seem to take the hearing seriously.

ROBERT DECK

113. Robert Deck is currently a teacher at Lexington Junior High School (Lexington) in the Anaheim Union High School District. Mr. Deck teaches P.E. to 7th and 8th grade male and female students. This is Mr. Deck's 26th year of teaching at Lexington. Mr. Deck knows respondent because they attended the same master's degree program.

114. Mr. Deck considers respondent to be a close personal friend. He described respondent as a person who is trustworthy, dependable, and respectable. Mr. Deck does not know respondent to have done anything as a teacher that could be considered inappropriate. He has never observed respondent teaching in a classroom.

He has never heard concerns about respondent's interactions with female students. Mr. Deck is aware there are allegations of inappropriate conduct against respondent but he does not know the specifics.

115. Mr. Deck believes that allegations of respondent leering at female students, invading the personal space of female students, and flirting with female students, are not in line with respondent's character as he knows it. On cross-examination, Mr. Deck testified he would never stare at or comment on female students' bodies, and he would have concerns about any teacher who did that.

JEFFERY RUSSELL

116. Jeffery Russell is currently in his third year as the Athletic Director for the Anaheim Union High School District. Prior to that, Mr. Russell worked at Cypress High School for 27 years, where he taught Social Science and Economics, and was also the head basketball coach.

117. Mr. Russell knows respondent through coaching. He met respondent in the early 2000s. Mr. Russell was coaching in the youth basketball league in Cypress and respondent was the head basketball coach at HBHS, and their teams would meet in scrimmage games. Mr. Russell also knows respondent through professional development activities in Economics.

118. Mr. Russell has observed respondent interacting with students at sporting events, but not in a classroom. He has never seen respondent behave inappropriately with female students. Mr. Russell's two daughters graduated from HBHS in 2018 and 2021, respectively, and were in respondent's Economics class during their senior years. He had no concerns about his daughters having respondent as a teacher. Mr. Russell never heard concerns from anyone, including parents and other

teachers at HBHS, about respondent's interactions with female students. Mr. Russell would not have allowed his daughters to be in respondent's class if he had any concerns about respondent.

Discussion

119. The totality of the evidentiary record established respondent engaged in inappropriate and harassing conduct toward female students. During the 2021-2022 school year, respondent stared and leered at the bodies and chest areas of students A.J. and K.A. when they attempted to speak with him regarding school related matters.

120. During the 2022-2023 school year, respondent engaged in inappropriate and harassing conduct toward female students including the following: staring and leering at the bodies and chests of female students; commenting on female students' bodies, appearances, and clothing; telling female students they needed to spend one-on-one time with him to get a better grade; telling female students he had a "special liking" for them; expressing inappropriate affection for female students; discussing his personal life with students; asking students about their dating relationships; standing or leaning in too close to female students and invading their personal space; making inappropriate comments to students, such as "you're crazy"; and speaking with a female student about the location of bedrooms in her house.

121. During the 2022-2023 school year, respondent failed to maintain proper teacher-student boundaries and failed to maintain proper classroom decorum. Respondent conversed with students regarding his personal life. He asked students about their dating relationships. Respondent spoke to students as if he were speaking with his social peers at a bar rather than as a teacher speaking with his students.

122. During the 2022-2023 school year, respondent played the Freakonomics movie during class, when B.S. was present. One section of the movie showed topless female strippers wearing only bikini-bottoms dancing on a stage, and associated student B.S.'s first name with a stripper in a lower social and economic status. It is understandable B.S. would feel uncomfortable watching that part of the movie in the presence of her peers. Respondent reasonably should have known that students with names featured in a negative light in the movie would likely feel uncomfortable. Respondent played the movie as "time-filler" and did not present the movie as part of any classroom instruction or lesson. Respondent showed a lack of judgment by playing the Freakonomics movie to a classroom of 12th graders, who were minors and may not have the developmental and maturity levels appropriate for the material.

123. Respondent's interactions with student J.S. were established by the testimonies of other students in the class who witnessed the interactions, specifically B.S. and G.C. (J.S.'s written statement was appropriately considered as hearsay to explain and supplement the testimonies of B.S. and G.C.) The Commission found G.C.'s testimony particularly convincing. During high school, G.C. was shy and kept to herself. She and J.S. did not share the same circle of friends, and they did not speak with each other. G.C. was able to overhear respondent's conversations with J.S. when J.S. sat on the stool. G.C.'s desk was located in the front row of the classroom, near respondent's desk, which enabled her to overhear respondent's conversations with J.S. The Commission also found B.S. testified credibly regarding respondent's interactions with J.S. B.S.'s testimony was clear and straightforward.

124. Respondent's claim that he was merely building rapport with students did not mitigate or excuse his inappropriate conduct. Respondent's inappropriate conduct and comments caused female students to feel uncomfortable. As an

experienced educational professional with multiple years of experience, training, and knowledge about District expectations, respondent's lack of insight into his conduct and likely negative impact on students are concerning. Respondent claimed his "normal approach" to teaching was to connect with and build rapport with his students. However, he failed to maintain proper teacher-student boundaries that would obviate confusion, misunderstandings, or mischaracterizations by students. Respondent's demeanor at hearing reflected a sense of entitlement and an attitude consistent with that of his character witness, Andy Verdone, that female students have a tendency to make false accusations against male teachers. At hearing, respondent's demeanor was nonchalant despite the gravity of the charges confronting him.

LEGAL CONCLUSIONS

1. The Commission has jurisdiction to proceed in this matter, pursuant to Education Code section 44944 and Factual Findings 1 through 5. All further undesignated statutory references are to the Education Code.

2. The District has the burden of proof in this matter and the standard of proof is preponderance of the evidence. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal. App. 3d 1035, 1038-1039.) "Preponderance of the evidence" means evidence that has more convincing force than that opposed to it. (*Glage v. Hawes* (1990) 226 Cal.App.3d 314, 324-325.)

3. It is settled that the trier of fact—in this case the three members of the Commission—may "accept part of the testimony of a witness and reject another part even though the latter contradicts the part accepted." (*Stevens v. Parke Davis & Co.* (1973) 9 Cal.3d 51, 67.) The trier of fact may also "reject part of the testimony of a

witness, though not directly contradicted, and combine the accepted portions with bits of testimony or inferences from the testimony of other witnesses thus weaving a cloth of truth out of selected material." (*Id.*, at 67-68, quoting from *Neverov v. Caldwell* (1958) 161 Cal.App.2d 762, 767.) The testimony of "one credible witness may constitute substantial evidence." (*Kearl v. Board of Medical Quality Assurance*, 189 Cal.App.3d 1040, 1052.)

4. The grounds for dismissal alleged by the District against respondent are immoral conduct, evident unfitness for service, and persistent violation of or refusal to obey school laws or reasonable regulations. (Ed. Code, § 44932, subds. (a)(1), (6), (8).)

Immoral Conduct

5. Cause exists for respondent's dismissal pursuant to section 44932, subdivision (a)(1), for immoral conduct, based on Factual Findings 18-74 and 119-124.

6. The term "immoral conduct" has been defined to include conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare. (*Board of Ed. Of San Francisco Unified School Dist. V. Weiland* (1960) 179 Cal.App.2d 808, 811.)

7. "Moreover, the definition of immoral . . . conduct must be considered in conjunction with the unique position of public school teachers, upon whom are imposed 'responsibilities and limitations on freedom of action which do not exist in regard to other callings.'" (*San Diego Unified Sch. Dist. v. Comm'n on Professional Competence* (2011) 194 Cal.App.4th 1454, 1466.)

8. The District proved by a preponderance of the evidence respondent engaged in immoral conduct. Respondent's conduct toward his female students, which included making inappropriate comments and staring and leering at their bodies, showed moral indifference to the opinions of respectable members of the school community, and an inconsiderate attitude toward good order and the public welfare. Respondent's conduct made female students feel uncomfortable and fearful of attending his class. As a teacher for the District since 2006, respondent reasonably can be expected to have known his conduct was contrary to the standards of the teaching profession and District policies, which teachers review annually.

Evident Unfitness for Service

9. Cause exists for respondent's dismissal pursuant to section 44932, subdivision (a)(6), for evident unfitness for service, based on Factual Findings 18-74 and 119-124.

10. Evident unfitness for service means "clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies." (*Woodland Joint Unified School Dist. V. Commission Professional Competence* (1992) 2 Cal.App.4th 1429, 1444.) Evident unfitness for service "connotes a fixed character trait, presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district." (*Id.*)

11. The District proved by a preponderance of the evidence respondent is evidently unfit for service by reason of a non-remediable temperamental defect. Respondent's conduct toward female students reflected a lax attitude at maintaining proper teacher-student boundaries and a classroom environment conducive to learning for all students, not just those he favored. He interacted and communicated

with students more like their friend rather than their teacher. His repeated pattern of inappropriate interactions with female students reflects a disregard of his responsibility to establish and maintain proper teacher-student boundaries and proper classroom decorum. The totality of respondent's inappropriate conduct demonstrates his unfitness as a classroom teacher.

Persistent Violation of School Laws and Regulations

12. Cause exists for respondent's dismissal pursuant to section 44932, subdivision (a)(8), for persistent violation or refusal to obey school laws or regulations, based on Factual Findings 18-74 and 119-124.

13. In order for a teacher to be terminated under section 44932, subdivision (a)(8), for violations of school laws or rules, the violations must be either "persistent" or "motivated by an attitude of continuous insubordination." (*Gov. Board of Oakdale Union School District v. Seaman* (1972) 28 Cal.App.3d 77, 81.) A single violation of a school board's rules is not of itself cause for dismissal; it is the persistent disregard of school rules that the subdivision is designed to regulate. (*Id.*, at p. 84.) Isolated events or incidents involving an issue unresolved over a period of time are generally not considered persistent violation of rules. (*Bourland v. Commission on Professional Competence* (1985) 174 Cal.App.3d 317.)

14. In *Governing Board of Oakdale Union School District v. Seaman* (1972) 28 Cal.App.3d 77, 82, the court stated: "The word 'persistent' is defined by lexicographers as 'refusing to relent; continuing, especially in the face of opposition . . . stubborn; persevering . . . constantly repeated.' (Webster's New World Dict. (College ed.); see Webster's Third New Internat. Dict.) And in the judicial decisions of this, as well as

other states, the word has been interpreted to mean 'continuing or constant.' [citations omitted]."

15. The District proved by a preponderance of the evidence respondent engaged in a persistent violation of District policies during the relevant school years. As a certificated teacher at HBHS since 2006, respondent received training on professional standards and District policies. The totality of respondent's conduct was inconsistent with District policies requiring all staff adhere to high personal and professional standards of conduct, maintain a relationship of professional cooperation and respect with students, and conduct themselves in a manner that maintains an atmosphere conducive to learning.

Morrison Factors

16. Proven causes for discipline against a teacher must relate to his fitness to teach within the meaning of the factors enumerated in the case of *Morrison v. State Board of Education* (1969) 1 Cal.3d 214. Here, the District established by a preponderance of the evidence that cause exists to dismiss respondent based on immoral conduct, evident unfitness for service, and persistent violation of school rules. With regard to those causes for dismissal, the Commission considered all the factors suggested by *Morrison* and compared them to the facts established above. Not all *Morrison* factors need be present for the *Morrison* test to be satisfied. (*Governing Board of ABC School District v. Haar* (1994) 28 Cal.App.4th 369.) Moreover, the *Morrison* analysis need not be conducted on each individual fact established, but rather can be applied to the accumulated established facts. "When the camel's back is broken we need not weigh each straw in its load to see which could have done the deed." (*Woodland Joint Unified School District v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, 1457.)

17. The case of *Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 229, sets forth the following factors for determining a teacher's fitness to teach: (1) the likelihood that the conduct may have adversely affected students or fellow teachers; (2) the degree of such adversity anticipated; (3) the proximity or remoteness in time of the conduct; (4) the type of certificate held by the teacher; (5) extenuating or aggravating circumstances surrounding the conduct; (6) the praiseworthiness or blameworthiness of the motives resulting in the conduct; (7) the likelihood that the conduct in question will recur; and (8) the extent that discipline will cause an adverse chilling impact on the constitutional rights of the teacher involved or other teachers.

18. Based on application of the *Morrison* factors, the Commission finds that respondent's inappropriate conduct with female students in the 2021-2022 and the 2022-2023 school years, is related to teaching and respondent's fitness to teach. The *Morrison* factors apply in respondent's case as follows:

(1) The likelihood the conduct may adversely affect students or fellow teachers. Respondent's conduct adversely affected female students at HBHS. Female students were made to feel uncomfortable and fearful by respondent's comments and conduct in the classroom. The District no longer has confidence in respondent's ability to properly serve as a teacher.

(2) The degree of such adversity. Respondent's conduct caused a high degree of adversity among female students in his classes.

(3) The proximity or remoteness in time of the conduct. Respondent's conduct occurred recently, in the 2021-2022 and 2022-2023 school years.

(4) The type of teaching certificate held by the party involved. Respondent's misconduct is related to his duties as a classroom teacher authorized by his single subject credential.

(5) The existence of extenuating or aggravating circumstances, if any, surrounding the conduct. The Commission finds no extenuating or aggravating circumstances surrounding respondent's conduct.

(6) The praiseworthiness or blameworthiness of the motives resulting in the conduct. Respondent is blameworthy and culpable for his inappropriate conduct. Respondent cannot justify or excuse his conduct by claiming, after-the-fact, he had no intention to cause any harm to students.

(7) The likelihood of recurrence of the questioned conduct. The Commission finds there is a likelihood of recurrence of respondent's misconduct. Respondent has failed to acknowledge he engaged in misconduct or accept responsibility for his misconduct. He has shown no remorse for his misconduct.

(8) The extent discipline may cause adverse impact or chilling effect upon the constitutional rights of the teacher involved or other teachers. Not applicable.

Disposition

19. "The Commission has broad discretion in determining what constitutes unfitness to teach . . . , and whether dismissal or suspension is the appropriate sanction." (*California Teachers Association v. State of California* (1999) 20 Cal.4th 327, 343-344.) Thus, even where cause for dismissal has been established, the Commission still has broad discretion to determine whether such discipline is actually warranted. (*Fontana Unified School District v. Burman* (1988) 45 Cal.3d 208, 222.)

20. The Commission finds respondent has not accepted responsibility for his inappropriate conduct, has not expressed remorse, and has not engaged in any self-reflection. Teachers are trained to know appropriate teacher-student boundaries and are responsible to conform their conduct accordingly. Teachers must know the students they are teaching. Respondent failed to demonstrate basic familiarity with his students and situational awareness. At hearing, respondent repeatedly stated he did not recognize or realize he made his students feel uncomfortable. Respondent testified he never noticed J.S. or G.C. appearing to be uncomfortable with him. (Factual Findings 82, 92, 93.) Respondent claimed A.J.'s allegation that he stared at her chest was due to her misinterpreting his looking up from his desk. (Factual Finding 77.) Respondent claimed he had no unusual interactions with B.S.; however, he made B.S. feel uncomfortable with his comment that he had a "special liking" for her and her friends, telling her "You're crazy," and staring at her chest. (Factual Findings 22, 48, 51.) Further, respondent failed to recognize he made B.S. feel uncomfortable by showing the Freakonomics movie during class, which depicted B.S.'s first name in a negative and embarrassing way. (Factual Finding 55.)

21. Based on the foregoing, the unanimous decision of the Commission in this case is that respondent shall be dismissed from employment with the District. (Factual Findings 1-124; Legal Conclusions 1-20.)

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ORDER

Respondent Fabian Luna shall be dismissed from employment with the
Huntington Beach Union High School District.

DATE: 11/25/2025

Michael Anderson

Michael Anderson (Nov 25, 2025 07:44:10 PST)

MICHAEL ANDERSON

Commission Member

DATE: 11/26/2025

Gregg Primeaux

Gregg Primeaux (Nov 26, 2025 10:53:00 CST)

GREGG PRIMEAUX

Commission Member

DATE: 11/30/2025

Erlinda Shrenger

Erlinda Shrenger (Nov 30, 2025 16:38:26 PST)

ERLINDA SHRENGER

Administrative Law Judge

Office of Administrative Hearings